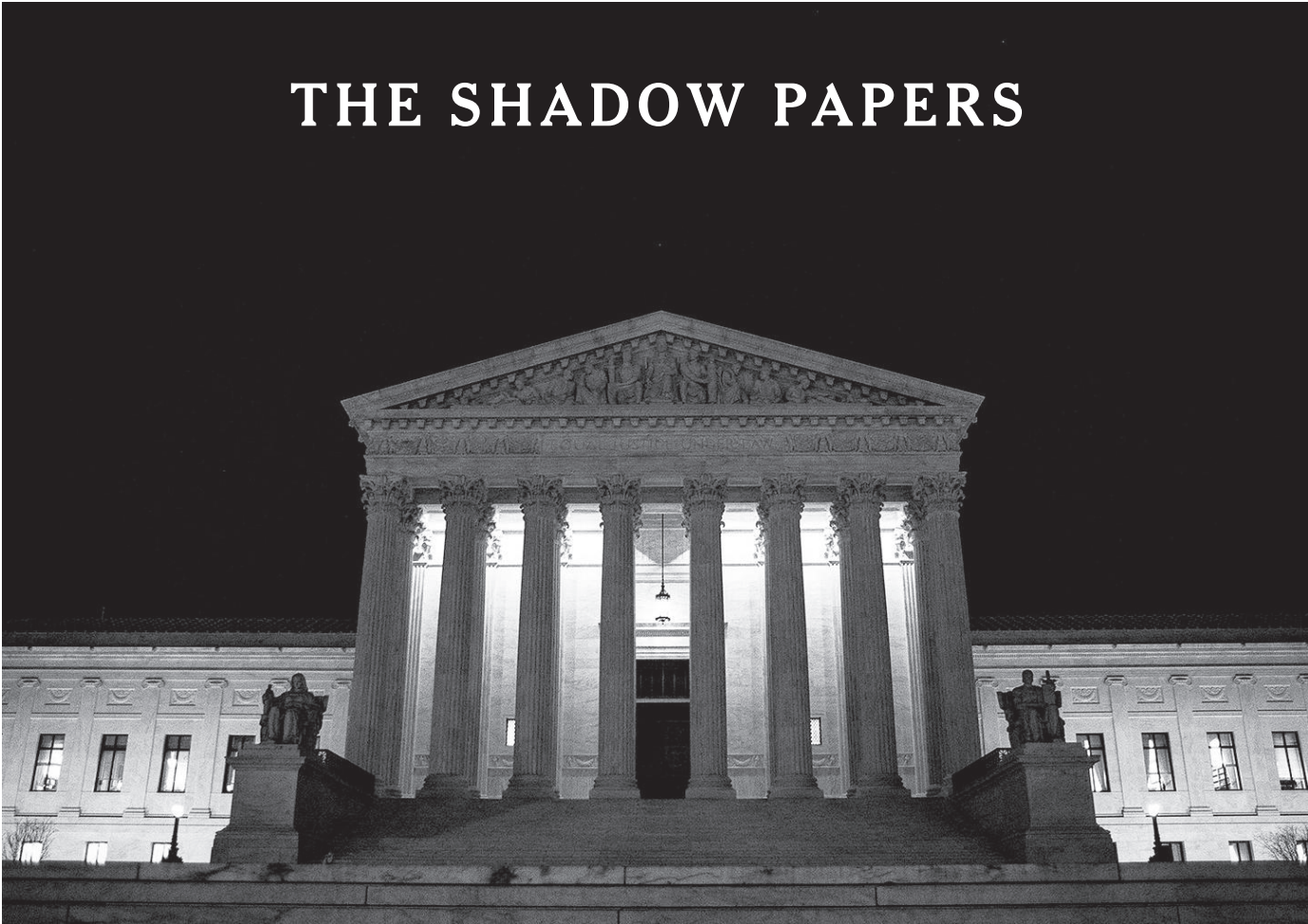


THE SHADOW PAPERS



Secret Memos Obtained by The New York Times Illuminate the Origins Of the Supreme Court's 'Shadow Docket' Rulings on Presidential Power

By JODI KANTOR and ADAM LIPTAK

Just after 6 p.m. on a February evening in 2016, the Supreme Court issued a cryptic, one-paragraph ruling that sent both climate policy and the court itself spinning in new directions.

For two centuries, the court had generally handled major cases at a stately pace that encouraged care and deliberation, relying on written briefs, oral arguments and in-person discussions. The justices composed detailed opinions that explained their thinking to the public and rendered judgment only after other courts had weighed in.

But this time, the justices were sprinting to block a major presidential initiative. By a 5-to-4 vote along partisan lines, the or-

Feb. 6, 2016

I recognize that the posture of this stay request is not typical.

CHIEF JUSTICE JOHN ROBERTS

Feb. 7, 2016

It would be unprecedented for us to second-guess the D.C. Circuit's decision that a stay is not warranted.

JUSTICE ELENA KAGAN

der halted President Barack Obama's Clean Power Plan, his signature environmental policy. They acted before any other court had addressed the plan's lawfulness. The decision consisted of only legal boilerplate, without a word of reasoning.

At the time, the ruling seemed like a curious one-off. But that single paragraph turned out to be a sharp and lasting break. That night marks the birth, many legal experts believe, of the court's modern "shadow docket," the secretive track that the Supreme Court has since used to make many major decisions, including granting President Trump more than 20 key victories on issues from immigration to agency power.

Since that night a decade ago, the logic

Continued on Page 22

Helping Party, Vance Helps Himself, Too

By THEODORE SCHLEIFER and SHANE GOLDMACHER

Vice President JD Vance's unusual second job as the finance chair of the Republican National Committee is exactly the kind of role an ambitious presidential aspirant might dream up.

He's been able to do some good for the party, raising tens of millions of dollars at events for Republicans as they head into the midterms. And he's been able to do some good for himself, wooing some of his party's richest and most influential patrons.

Mr. Vance and his team have been leery of being seen as plotting about anything beyond the 2026 midterms, or of drawing attention to President Trump's limited time left in the White House and the Republican race to succeed him.

But as the first vice president to serve as the finance chair of the party, Mr. Vance has been taking full advantage of the opportunity to win the hearts and minds of top Republican financiers — both skeptics, of whom there are plenty, and loyalists. And when he shows up at these fund-raisers, guests are prone to ask the obvious: You're running, right?

Continued on Page 18

Establishing a Sense of Place for Art

From the Metropolitan Museum of Art, above, to Atlanta's High Museum of Art, institutions are commemorating the past as they embrace change and move into the future. Special Section.



DANIEL TERNA FOR THE NEW YORK TIMES

Trump Has a Go-To Justification for His Contentious Decisions: National Security

By MAXINE JOSELOW and DEVLIN BARRETT

WASHINGTON — President Trump offered a surprising justification in March for forging ahead with construction of his White House ballroom: Halting the \$400 million project would pose a grave threat to national security.

“Everything is drone-proof and bulletproof,” Mr. Trump said, listing the security features of a bunker being built beneath the ballroom to protect the president in the event of an emergency.

It was hardly the first time the administration had invoked national security to justify a contentious decision. Over the past

year, top officials have cited similar concerns when stripping union rights from thousands of federal workers, pausing the construction of wind farms off the East Coast, and exempting oil and gas drilling in the Gulf of Mexico from protections for endangered species of whales.

Critics see a troubling trend

that is testing the limits of presidential power.

“When you look under the hood, they're fake national security emergencies,” said Patrick Parienteau, an emeritus professor at the Vermont Law and Graduate School. “This is a power grab. This is his way of circumventing Congress.”

Federal judges, including those appointed by Mr. Trump, have often rebuked the Justice Department over its claims of potential national security risks, though an appeals court signaled last weekend that such assertions about White House construction might be valid.

Continued on Page 25

A Standoff at the Strait: Iran Takes Back Control

Demands U.S. Withdraw Naval Blockade As Hopes Dim for Quick End to War

By AARON BOXERMAN and EUAN WARD

JERUSALEM — Iran's Islamic Revolutionary Guards Corps said on Saturday that the Strait of Hormuz was closed until the United States ended its own naval blockade, just a day after both countries announced that the vital waterway had reopened.

Two Indian-flagged ships were hit by fire, at least one of them from Iranian forces, according to a shipping monitor. The new developments added to the confusion over the status of transit through the strait and could dampen hopes for a quick end to the war.

On Friday, Iran's foreign minister called the strait “completely open,” leading Mr. Trump to declare a major breakthrough in the negotiations between the two countries on a permanent cease-fire. At the same time, Mr. Trump said the United States would maintain its blockade of ships traveling from Iranian ports. His statement appeared to anger the Iranians, who had expected the United States to reciprocate by ending its blockade.

Mr. Trump imposed the blockade on Monday after the countries failed to reach any agreement after a marathon bargaining session

in Pakistan last weekend. The two countries are currently abiding by a cease-fire that is set to expire on Tuesday.

Iran has choked global energy supplies by menacing passing ships during more than a month of war with the United States and Israel. The throttling of oil tanker traffic had sent oil prices soaring, and they dropped after Iran's announcement on Friday that the strait had reopened.

Mr. Trump on Saturday continued to project optimism about the prospect of a deal, despite Iran's renewed closure of the strait. “They got a little cute, as they have been doing for 47 years,” he told reporters in the Oval Office after signing an executive order on an unrelated matter. The peace talks, he maintained, were “going actually along very well.”

The strikes on Indian-flagged ships did not appear to cause any casualties, but they inflamed tensions between India and Iran. In a statement on Saturday, India's Ministry of External Affairs said that it had summoned Iran's ambassador and “conveyed India's

Continued on Page 14

‘MOSQUITO FLEET’ The Islamic Revolutionary Guards Corps has its own navy, with small, agile boats that can disrupt shipping. PAGE 12

QATAR’S PREDICAMENT The Gulf nation has close ties to the U.S. and cordial relations with Iran, but it has suffered in the war. PAGE 13

Venezuela, With U.S. Prodding, Quietly Purges Maduro’s People

By ANATOLY KURMANAEV and MARIANA MARTÍNEZ

CARACAS, Venezuela — U.S. Special Forces brought down President Nicolás Maduro of Venezuela swiftly and publicly.

Now, the people who kept him in power are being purged gradually and inconspicuously. Some have been fired or detained, and others are anxiously looking over their shoulders, worried they might be next.

Oligarchs close to Mr. Maduro's family have been snatched from their homes. His political allies have been summarily removed from their posts. His relatives have been sidelined from business deals and barred from media appearances.

The housecleaning is being carried out by Mr. Maduro's former vice president, Delcy Rodríguez, who is running the country under instructions from the Trump administration. The detentions and leadership purges have unfolded without public explanation, but often with the approval — and sometimes at the urging — of the White House, according to people close to Ms. Rodríguez's government.

After Mr. Maduro was dragged off in January to a New York jail,

Ms. Rodríguez presented herself as a reluctant and temporary stand-in for a fallen leader, denouncing his capture as an illegal attack on her country.

But now, with Mr. Maduro gone, she is dismantling his ruling coterie and embarking on the largest redistribution of power in Venezuela in decades.

The overhaul of national leadership, along with sweeping new laws and her alliance with President Trump, is reshaping Venezuela and its management of one of the planet's largest oil reserves, just as the world grapples with the energy turmoil caused by war in the Middle East.

In the three months since Mr. Maduro's capture, Ms. Rodríguez has changed 17 ministers, replaced military commanders and installed new diplomats. She has also overseen the detention of at least three businessmen tied to

Continued on Page 8



Delcy Rodríguez

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| <div>SPECIAL SECTION</div> <div><div>This Beast Is a Beauty</div><div>Dane Brugler and the team at The Athletic have worked for over a year on The Beast, the most comprehensive guide to this week's N.F.L. draft.</div></div> | <div>ARTS &amp; LEISURE</div> <div><div>These Actors Have a ‘Beef’</div><div>A stressful story and fraught characters, including a couple played by Oscar Isaac and Carey Mulligan, highlight the new season of the series.</div><div>PAGE 7</div></div> | <div>SUNDAY BUSINESS</div> <div><div>Attention, College Graduates</div><div>Advice on building a rewarding work life, even amid current employment gloom, could come down to these two words: craft and need.</div><div>PAGE 4</div></div> | <div>THE MAGAZINE</div> <div><div>Sunday Crossword</div><div>A corrected version of the puzzle is in the news section today after an error was discovered in the grid published in this weekend's magazine.</div><div>PAGE 25</div></div> | <div>SUNDAY OPINION</div> <div><div>Julia Belluz</div><div>PAGE 6</div></div> <div></div> |
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